



CHAPTER 15.

An Act to make special provision on account of circumstances arising out of the present emergency as to examinations and service under articles in the case of persons desirous of being admitted as solicitors, as to the awarding of prizes, medals and scholarships by law societies, and as to the delegation of the powers of the Master of the Rolls under the enactments relating to solicitors; and for purposes connected with the matters aforesaid.

[25th April 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The Council may at their discretion grant to any articled clerk exemption from the passing of an intermediate examination or any separate part of or subject comprised in that examination on account of circumstances connected with or arising out of the present emergency, and any articled clerk to whom such exemption has been granted may, notwithstanding anything in section fourteen of the principal Act, be admitted as a solicitor although he has not passed and therefore has not obtained a certificate of having passed such examination or such part or subject as the case may be.

Power to grant exemption from passing intermediate examination.

Power to
allow
earlier
presenta-
tion for
final
examina-
tion.

2.—(1) Notwithstanding anything contained in section thirty-one of the principal Act, a person who has entered into articles for the required term and has duly served thereunder and complied with the provisions of Part II of that Act applying to him up to the time for his presenting himself for final examination may with the permission of the Council, which they may grant or withhold at their discretion, present himself during the period of the present emergency for final examination at an examination earlier than the one next preceding the expiration of the term of his articles.

(2) This section shall be deemed to have come into operation on the first day of February nineteen hundred and forty.

Power to
reckon
national
service as
service
under
articles in
certain
cases.

3. The Council at their discretion—

- (a) in the case of any articled clerk who after the commencement of his articles has been engaged in national service, may permit the whole or any part of the period of such national service to be reckoned as a period of good service under articles for the purposes of sections fourteen and fifteen of the principal Act; and
- (b) in the case of any person desirous of being admitted as a solicitor who has been engaged in national service before the commencement of his articles, may permit the term of service under articles for which section fifteen of the principal Act requires him to be bound to be reduced by the whole or any part of the period of such national service :

Provided that in any such case the clerk or person shall not be admitted as a solicitor unless he has during an aggregate period of not less than two years been actually employed as an articled clerk in the proper business practice and employment of a solicitor by the solicitor to whom he has been articled or in such employment as is mentioned in paragraph (a) of section twenty of the principal Act with that solicitor's London agent.

4. Where a person before entering into articles of clerkship to a solicitor has attended part of such a course of legal instruction as is mentioned in sub-paragraph (c) of paragraph (7) of the First Schedule to the principal Act but has been unable to complete such course or to pass the qualifying examination in relation to that course in consequence of the course being suspended owing to the present emergency or in consequence of his being engaged in national service, the Council may at their discretion permit a reduction in the term of service under articles for which section fifteen of the principal Act requires him to be bound by such period as they may think fit having regard to the proportion of the course which he has attended.

Power to reckon attendance at course of legal instruction as service under articles in certain cases.

5. Notwithstanding any provision in any will, trust deed, order of Court, or other instrument or in any rule or regulation, the Society or any Provincial Law Society may postpone until after the end of the period of the present emergency the award of any prize, medal or scholarship which would normally be awarded by them during that period and may retain in hand until after the end of that period any money which would normally be applicable to the prize, medal or scholarship whose award is thus suspended or may award such prize, medal or scholarship and apply thereto such sum (not being more than the sum which would normally be applicable thereto) as the Council or the governing body of the Provincial Law Society (as the case may be) at their absolute discretion may think fit. The Society or any Provincial Law Society may temporarily invest any money retained by them pursuant to the powers of this section in such manner as the Council or the governing body of the Provincial Law Society (as the case may be) at their discretion may think fit and may similarly invest any income or proceeds arising from such investment. Any money so retained and any such income or proceeds as aforesaid and any investments representing such money income or proceeds shall form a fund which after the end of the period of the present emergency shall be applied by the Society or the Provincial Law Society (as the case may be) to the award of prizes, medals or scholarships in such manner as the Council or the governing body of the Provincial Law Society (as the

Power to suspend the award of prizes, &c.

case may be) at their discretion shall think fit or shall be invested by the Society or the Provincial Law Society (as the case may be) in manner aforesaid and the income or proceeds arising from any such investment shall be applied as hereinbefore mentioned.

Provision
as to
exercise of
powers of
Master of
Rolls during
period of
emergency.

6. Any of the powers which under the provisions of the Solicitors Acts, 1932 to 1939, are exercisable by the Master of the Rolls, may, during the period of the present emergency, be exercised by such judge of the High Court as the Master of the Rolls may, by writing under his hand, direct; and any direction given by the Master of the Rolls under this section may be varied or revoked by a subsequent direction given by him in like manner.

In the event of the office of the Master of the Rolls being vacant, the powers conferred on him by this section may be exercised by the Lord Chief Justice.

Amend-
ment of
s. 26 of
principal
Act.

7. Section twenty-six of the principal Act (which relates to the examinations to be held under the management of the Law Society) shall during the period of the present emergency have effect as if for subsection (1) thereof there were substituted the following subsection:—

“(1) The Law Society shall hold in every year such number of preliminary examinations and intermediate examinations and final examinations as the Council at their discretion may from time to time decide.”

Interpre-
tation.

8. In this Act, unless the context otherwise requires—

“The present emergency” means the emergency which was the occasion of the passing of this Act;

“The period of the present emergency” means the period beginning with the first day of September nineteen hundred and thirty-nine and ending with such date as His Majesty may by Order in Council declare to be the date on which the emergency which was the occasion of the passing of this Act came to an end;

“National service” means and includes—

(a) service in any of the naval, military or air forces of the Crown during the period of the present emergency;

(b) detention during that period as a prisoner, military or civil, in any enemy country, or internment during that period in an enemy or neutral country in consequence of any war in which His Majesty may be engaged; and

(c) any public service connected with or consequent upon the present emergency and being of a character approved by the Registrar;

- “The principal Act” means the Solicitors Act, 1932; 22 & 23
Geo. 5. c. 37.
- “Solicitor” has the meaning given to that expression by sections two and eighty-one of the principal Act;
- “The Law Society,” “the Society,” and “the Council” have the respective meanings given to those expressions by section eighty-one of the principal Act;
- “Provincial Law Society” means a society which is for the time being recognised by the Council as representative of persons engaged in the profession of solicitor in some particular part of England or Wales;
- “The Registrar” has the meaning given to that expression by section one of the principal Act;
- “Articles” has the meaning given to that expression by section fourteen of the principal Act.

9.—(1) Where any person, who has been or shall be during the period of the present emergency engaged in national service, has entered or shall enter into an indenture of apprenticeship in terms of the Solicitors (Scotland) Act, 1933, the General Council of Solicitors in Scotland may at their discretion permit the whole or any part of the period of such service to be reckoned as actual service under such indenture for the purposes of the said Act:

Provided that in any such case the person shall not be admitted as a solicitor unless he has during an aggregate period of not less than two years bona fide served as an apprentice with a practising solicitor.

(2) In this section the expressions “the period of the present emergency” and “national service” have the meanings respectively assigned to them by section

Power to reckon national service as service under indenture of apprenticeship for the purposes of the Solicitors (Scotland) Act, 1933. 23 & 24 Geo. 5. c. 21.

eight of this Act with the substitution, however, of a reference to the Lord President of the Court of Session for any reference to the Registrar.

Short title
and extent.

10.—(1) This Act may be cited as the Solicitors (Emergency Provisions) Act, 1940.

(2) The last foregoing section of this Act shall extend to Scotland, but save as aforesaid this Act shall not extend to Scotland or Northern Ireland.

Printed by EYRE AND SPOTTISWOODE LIMITED

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Acts of Parliament

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